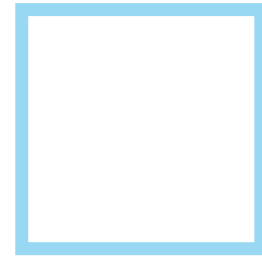




CIVIL PENALTIES



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Civil Penalties for Illegal Working in the UK: A Guide for Employers

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1. Introduction to Civil Penalties for Illegal Working in the UK

Under UK immigration law, employers have a legal obligation to prevent illegal working by conducting right to work checks on all employees. Where an employer is found to have employed an individual who does not have the right to work in the UK – and either knew or had reasonable cause to believe this – the Home Office may impose a civil penalty. These penalties are designed to deter unlawful employment practices and ensure compliance with the UK's immigration control regime.

The consequences of receiving a civil penalty are not limited to financial loss. A civil penalty may damage an organisation's reputation, affect its ability to recruit overseas workers, and result in the loss or [refusal of a sponsor licence](#). In more serious cases, knowingly employing an illegal worker may lead to criminal prosecution, with penalties including imprisonment and unlimited fines.

This guide explains when and how [civil penalties](#) arise under UK immigration law, outlines the process followed by the Home Office, and sets out the options available to employers who wish to challenge or mitigate a civil penalty. It also highlights the steps employers can take to avoid liability altogether through proper compliance practices.

If you are seeking advice in relation to a Civil Penalty Referral Notice or a Civil Penalty Notice, contact our specialist civil penalty immigration barristers on 0203 617 9173 or complete our enquiry form below.

2. What Is an Immigration Civil Penalty?

An immigration civil penalty is a financial sanction imposed by the Home Office on an employer who is found to have employed an individual who does not have the [right to work](#) in the UK. The penalty is issued under the authority of the Immigration, Asylum and Nationality Act 2006, as amended by the [Immigration Act 2016](#), and forms part of the UK Government's strategy to tackle illegal working.

A civil penalty may be imposed if the Home Office concludes that the employer knew, or had reasonable cause to believe, that an employee did not have permission to work. This includes cases where:

- The individual never had the right to work in the UK;
- The individual previously held permission to work, but it has since expired;
- The individual is working in **breach of the conditions** of their visa (e.g. exceeding permitted hours or engaging in unauthorised work).

Importantly, a civil penalty may be issued even if the breach was unintentional, provided the employer failed to carry out the **prescribed right to work checks** correctly. In such cases, the employer will not benefit from the statutory excuse and will be considered liable.

Civil penalties are distinct from criminal prosecutions. However, in cases of knowing employment of an illegal worker, criminal sanctions, including imprisonment for up to five years and/or an unlimited fine, may also apply. The civil penalty regime is therefore one of several enforcement mechanisms used by the Home Office to uphold immigration control and ensure employer compliance.

3. Civil Penalty Amounts and Fast Payment Options

The financial consequences of a civil penalty for illegal working can be significant. The amount payable will depend on several factors, including whether it is a first or repeat breach and whether any mitigating circumstances apply.

Maximum Penalties

The current maximum penalty levels are as follows:

- £45,000 per illegal worker for a first breach; and
- £60,000 per illegal worker for a repeat breach.

These **increased civil penalty amounts** came into effect on 13 February 2024 as part of the Government's broader crackdown on illegal working.

Factors Affecting the Level of Penalty

The Home Office determines the exact amount of a civil penalty based on a holistic assessment of the circumstances. Key considerations include whether the employer has previously been found liable for employing illegal workers, whether any mitigating factors are present and whether the employer is entitled to a statutory excuse.

Mitigating Factors

The Home Office may reduce the penalty where the employer can demonstrate one or more of the following as set out in the [Code of practice on preventing illegal working](#):

- **Reporting:** A history of reporting suspected illegal workers to the Home Office.
- **Active Cooperation:** Evidence of full and prompt cooperation during the Home Office's investigation.
- **Effective Right to Work Systems:** Demonstration of robust internal processes for checking and recording employees' right to work. In some cases, this may result in the penalty being replaced with a Civil Penalty Warning Notice, with no fine imposed.

Fast Payment Option

Employers receiving a civil penalty for a first-time breach may benefit from a 30% reduction in the penalty amount if they pay in full within 21 days of the notice. This is known as the Fast Payment Option (FPO). The FPO is not available for repeat breaches and cannot be used where payment is made by instalments.

The possibility of significant reductions in penalty amounts underscores the importance of responding promptly and comprehensively to all Home Office correspondence relating to civil penalties.

4. The Home Office Civil Penalty Process Explained

The civil penalty process begins when the Home Office suspects that an employer may have hired one or more individuals who do not have the legal right to work in the UK. The process consists of several formal stages, during which the employer will have opportunities to provide evidence and make representations before any penalty is imposed.

1. Home Office Compliance Visit

The process is often triggered by a [compliance visit](#) – either announced or unannounced – conducted by Home Office officers. During the visit, officials may review employment records, interview staff, and identify individuals suspected of working illegally.

2. Civil Penalty Referral Notice



If the Home Office identifies a potential breach, it will issue a Civil Penalty Referral Notice. This document informs the employer that their case is being referred for a decision on liability and potential penalty. No penalty is imposed at this stage, but it signals that a formal investigation is underway.

3. Information Request and Response

Following the Referral Notice, the Home Office will issue an Information Request, inviting the employer to submit evidence relating to the employment of the individual(s) concerned. This includes copies of right to work checks undertaken, records of employment any other documents that may establish a statutory excuse or provide mitigating factors.

The employer must respond within 10 working days using the Information Request Response Form, accompanied by supporting documentation. This is a crucial stage of the process – failure to respond or provide adequate evidence may result in the automatic imposition of the maximum penalty.

Equally, submitting a timely and detailed response may demonstrate active cooperation (reducing the potential fine), establish a statutory excuse (preventing liability altogether) and/or highlight mitigating factors (that could lower the penalty amount).

If you have received a Civil Penalty Referral Notice or Information Request, our immigration barristers can provide you with expert advice on the information and evidence that should be provided to the Home Office. Contact our business immigration team for further advice.

4. Decision and Outcome

After reviewing the evidence, the Home Office will determine whether a civil penalty is appropriate. There are three possible outcomes:

- **Civil Penalty Notice:** This formal notice sets out the amount of the fine, the reasons for the decision, how payment can be made, and the employer's right to object. It is accompanied by a Statement of Case detailing the evidence relied upon.
- **Warning Notice:** If the Home Office finds that a breach occurred but mitigating factors apply – such as effective right to work checks – it may issue a Warning Notice instead of a financial penalty. This is a formal caution and may be taken into account if future breaches occur.
- **No Action Notice:** Where the Home Office concludes that no breach took place or a valid statutory excuse exists, it will issue a No Action Notice. No penalty is

imposed, and the case is closed.

Employers are advised to seek legal advice as early as possible during this process. Prompt and strategic engagement can materially affect the outcome, including whether a penalty is issued and the level of any financial liability.

5. What to Do If You Receive a Civil Penalty Notice

Receiving a Civil Penalty Notice from the Home Office is a serious matter that requires prompt and informed action. The notice will confirm that the Home Office has found you liable for employing one or more individuals without the right to work in the UK and will set out the amount of the penalty, the reasons for the decision, the deadline for payment and your rights to object or appeal.

Employers who receive a Civil Penalty Notice have three immediate options:

- (1) Pay the Civil Penalty,
- (2) Object to the Civil Penalty, or
- (3) Appeal to the County Court.

Each option has strict deadlines and procedural requirements.

1. Pay the Civil Penalty

If you do not wish to contest the notice, you may pay the penalty in full. For first-time breaches, you may benefit from a 30% reduction if payment is made within 21 days of the date on the notice – this is known as the Fast Payment Option (FPO). The FPO cannot be paid in instalments and is not available to repeat offenders.

If you are unable to make full payment immediately and do not qualify for the FPO, you may request to pay the penalty in instalments. This request must be made to the Home Office Shared Service Centre, and will usually require a written explanation of financial hardship and a proposed repayment plan (usually over a period of up to 24 months).

2. Object to the Civil Penalty

You have the right to object to the penalty if you believe it was wrongly imposed or if the penalty amount is too high. The objection must be made in writing within 28 days of the due date specified in the notice.

Acceptable grounds for objection include that you were not the employer of the individual concerned, you have a valid statutory excuse (i.e. compliant right to work checks were undertaken) and/or the amount of the penalty is excessive, particularly in light of mitigating circumstances.

When submitting an objection, it is essential to provide a completed Objection Form, full written representations and documentary evidence in support of your grounds.

The Home Office will review the objection and respond with an Objection Outcome Notice, which may cancel, reduce, or uphold the penalty. In some cases, a new Civil Penalty Notice may be issued with an increased penalty amount.

3. Appeal the Civil Penalty

If you disagree with the Home Office's decision following your objection – or choose to bypass the objection stage – you may appeal to the County Court. The appeal must be lodged within 28 days of the date specified on either the Objection Outcome Notice or the new Civil Penalty Notice, if one is issued following an objection.

Appeals may only be brought on the same grounds as an objection. If unsuccessful, the court may order you to pay the Home Office's legal costs.

Consequences of Inaction

If you fail to pay, object, or appeal within the required deadlines, the Home Office may initiate civil recovery proceedings through the County Court. This can result in a County Court Judgment (CCJ), a negative impact on your credit rating, restrictions on acting as a company director and/or damage to your reputation and future immigration compliance status.

For this reason, employers are strongly advised to seek specialist legal advice as soon as a Civil Penalty Notice is received. Timely and expert intervention can often reduce or eliminate liability.

6. How to Pay a Civil Penalty for Illegal Working

If you choose not to object to or appeal a Civil Penalty Notice, or if your objection or appeal is unsuccessful, you will be required to pay the full amount specified in the notice by the deadline set out by the Home Office. It is critical to understand your payment options and any available reductions to ensure compliance and minimise financial liability.

Fast Payment Option (FPO)

For employers receiving a civil penalty for the first time, the Home Office offers a Fast Payment Option, under which you may receive a 30% reduction in the total penalty amount. Full payment must be made within 21 days of the date on the Civil

Penalty Notice and the penalty must be paid in one lump sum; instalments are not permitted under the FPO.

This reduction is only available to first-time offenders. Employers who have previously received a civil penalty, even if for a different breach or under different circumstances, are not eligible for the FPO.

Paying a Civil Penalty by Instalments

If you are not eligible for the Fast Payment Option or cannot pay the full penalty amount immediately, you may apply to pay in instalments. This application must be made to the Home Office Shared Service Centre and should include a written explanation of your inability to pay in full, a proposed payment schedule, usually over a period of up to 24 months and supporting evidence of your financial circumstances or hardship.

Approval of an instalment plan is discretionary and may be refused if the Home Office considers the request unreasonable or insufficiently evidenced.

How to Pay a Civil Penalty

Payment can be made via bank transfer or another approved method as set out in the Civil Penalty Notice. It is essential to use the correct reference number to ensure the payment is allocated to your case, retain proof of payment and notify the Home Office if payment has been made or if you anticipate any delays.

Consequences of Late or Non-Payment

Failure to pay the penalty by the due date – either in full or by agreed instalments – can result in enforcement action. The Home Office may commence County Court proceedings, secure a County Court Judgment (CCJ) against your business or against you personally and/or pursue debt recovery measures, which may include bailiff enforcement, asset seizure, or damage to your creditworthiness.

Where a CCJ is entered, it can also restrict your ability to act as a company director, secure future business financing and obtain or retain a Sponsor Licence.

Employers are strongly advised to take immediate steps to comply with payment obligations or seek legal assistance if they are unable to do so. Prompt engagement with the Home Office and professional advice can prevent further escalation and minimise reputational and financial harm.

7. How to Object to a Civil Penalty from the Home Office

If you have received a Civil Penalty Notice from the Home Office and believe it was issued in error or that the penalty amount is excessive, you have the right to formally object. Lodging a timely and well-supported objection can result in the penalty being cancelled, reduced, or – less commonly – increased. It is therefore essential to approach the objection process with care, accuracy, and, ideally, legal representation.

Deadline to Object to a Civil Penalty

You must submit your objection in writing within 28 days of the due date specified in the Civil Penalty Notice. If the objection is submitted within this deadline, and the breach is your first, you will remain eligible for the Fast Payment Option (30% reduction) should the penalty be upheld.

Grounds for Objection to a Civil Penalty

Your objection must be based on one or more of the following grounds, as set out by the Home Office:

1. **You are not liable to pay the penalty:** For example, you were not the employer of the individual identified in the notice.
2. **You have a statutory excuse:** You conducted fully compliant right to work checks before employing the individual, in accordance with Home Office guidance.
3. **The level of the penalty is too high:** The Home Office failed to take mitigating circumstances into account, such as voluntary reporting or cooperation.

Evidence to Support Your Objection to a Civil Penalty

It is not sufficient to simply assert that one of the grounds applies – you must provide clear, detailed, and relevant evidence. This may include:

- Copies of right to work check documentation (e.g. scanned passports, visa records, Home Office verification responses);
- Internal audit logs or onboarding records;
- Written explanations of internal procedures or cooperation with investigators;
- Financial records, where the penalty amount is being challenged on the basis of proportionality.

Only mitigating factors referenced in the Home Office's published Consideration Framework will be taken into account. These include a history of reporting

suspected illegal workers, demonstrated active cooperation during the investigation and evidence of effective right to work checking systems.

Outcome of an Objection to a Civil Penalty

After reviewing your objection and supporting documents, the Home Office will issue an Objection Outcome Notice, which will set out one of the following outcomes:

- **Cancellation of the penalty:** The Home Office accepts that no liability arises.
- **Reduction of the penalty:** A lower amount is payable due to mitigating factors or errors in the original calculation.
- **Upholding of the penalty:** The original amount remains payable.
- **Increase of the penalty:** In rare cases, a new Civil Penalty Notice may be issued with a higher penalty (accompanied by a revised Statement of Case).

If the penalty is upheld or increased, the employer will be required to pay the amount within 21 days from the date specified on the Objection Outcome Notice.

Importance of Legal Advice

Given the legal and reputational consequences of a civil penalty, employers are strongly advised to seek expert legal advice when preparing an objection. A well-argued objection, supported by properly presented evidence, may significantly reduce or even eliminate liability.

Where an objection is unsuccessful, the next step is to consider an appeal to the County Court, which must also be made within 28 days.

If you have received a Civil Penalty Referral Notice or a Civil Penalty Notice, contact our specialist civil penalty immigration barristers on 0203 617 9173 or complete our enquiry form below for expert legal advice.

8. Appealing a Civil Penalty for Employing Illegal Workers

If your objection to a Civil Penalty Notice is unsuccessful, or if you choose to bypass the objection stage entirely, you may appeal the Home Office's decision by lodging an appeal with the County Court. An appeal provides a further opportunity to challenge the penalty, either in relation to liability or the amount imposed.

Time Limit for Appealing Against a Civil Penalty

You must submit your appeal within 28 days of either the date specified on the Objection Outcome Notice (if an objection was made), or the date specified on the Civil Penalty Notice (if no objection was lodged).

Failure to lodge an appeal within this timeframe may result in you being unable to challenge the penalty and being required to pay in full.

Grounds for Appeal Against a Civil Penalty

The permissible grounds of appeal are the same as those available for objection, namely:

1. **You are not liable to pay the penalty:** For instance, you were not the employer at the time of the alleged breach.
2. **You have a statutory excuse:** You carried out compliant right to work checks before the individual began employment.
3. **The penalty amount is too high:** The Home Office failed to properly apply relevant mitigating factors.

The court will not consider new grounds that were not raised during the objection process unless there are exceptional circumstances.

The Civil Penalty Appeal Process

An appeal is a formal legal proceeding, and it is heard in the County Court. The process generally involves filing an appeal form (Form N161 in England and Wales), accompanied by the court fee and grounds of appeal, serving the Home Office (the respondent) with a copy of the appeal documents, disclosure of evidence and preparation of legal submissions and a hearing before a judge, at which both parties may be represented and give oral evidence.

The judge will review the evidence, assess whether the Home Office acted lawfully and reasonably in issuing the penalty, and determine whether the penalty should be cancelled, reduced, or upheld.

Outcomes of a Civil Penalty Appeal

Following the hearing, the County Court may cancel the penalty entirely, reduce the amount payable or uphold the penalty in full.

Costs and Risks in Civil Penalty Appeals

If your appeal is unsuccessful, the court may order you to pay the Home Office's legal costs, as well as your own. These costs can be substantial, especially if the case involves complex legal or factual issues.

Importance of Legal Representation in Civil Penalty Appeals

Given the complexity of the legal framework and the procedural demands of County Court litigation, employers are strongly advised to seek specialist legal representation. An experienced immigration barrister can ensure that the appeal is properly prepared and persuasively argued, increasing the likelihood of a successful outcome and minimising the risk of an adverse costs order.

9. Civil Penalty Consequences for UK Employers

The implications of receiving a civil penalty for employing an illegal worker extend far beyond the immediate financial sanction. A civil penalty can have serious and lasting consequences for an organisation's reputation, its ability to hire and retain foreign workers, and its legal and commercial standing.

1. Public Disclosure and Reputational Damage

The Home Office maintains a [public register of employers](#) who have been issued with civil penalties for illegal working. This register is freely accessible online, is regularly updated and publicly searchable and may be accompanied by press releases to local and national media.

Being named on this list can cause considerable reputational harm, particularly in regulated sectors or businesses reliant on public trust. Clients, suppliers, and employees may lose confidence in a business that has been found to have breached immigration law.

2. Impact on Sponsor Licence Applications and Renewals

Employers who receive a civil penalty will face significant difficulties when applying for or renewing a Sponsor Licence. Home Office guidance makes clear that:

- If you are issued with a civil penalty, the Home Office is likely to [revoke your existing sponsor licence](#);
- You will be ineligible to [apply for a new sponsor licence](#) until at least 12 months after full payment of the penalty;
- If more than one penalty has been issued, the cooling-off period may extend to up to 5 years.

This restriction can severely limit your ability to recruit overseas talent and may disrupt existing sponsorship arrangements.

3. Risk of Criminal Liability

In cases where an employer is found to have knowingly employed an illegal worker, or had reasonable cause to believe that the worker did not have permission to work, criminal prosecution may follow. The penalties include imprisonment for up to 5 years, an unlimited fine and possible action against company directors or senior managers.

Even where no criminal charges are brought, the findings from a civil penalty investigation may trigger regulatory scrutiny in other areas of the business.

4. Company Director Disqualification and Business Consequences

A civil penalty may also affect an individual's or company's corporate and commercial standing, particularly if enforcement action is taken to recover the debt. Consequences may include County Court Judgments (CCJs), which can impair creditworthiness, restrictions on an individual's ability to act as a company director under UK company law and/or enforcement proceedings, such as bailiff action or asset seizure.

These consequences can undermine commercial viability, deter investors or partners, and prevent access to finance.

5. Future Immigration Compliance Monitoring

A civil penalty can act as a trigger for enhanced Home Office scrutiny in the future. Employers found liable may be subject to:

- Repeat **compliance visits**;
- Stricter conditions when **applying for a sponsor licence** or visa endorsement;
- Additional documentation requirements in support of immigration applications.

Given the cumulative impact of these consequences, it is vital that employers treat civil penalties with the seriousness they deserve. Early legal advice and strategic representation can make the difference between an isolated incident and long-term damage to your business and professional standing.

10. How Employers Can Avoid Civil Penalties for Illegal Working

The most effective way for employers to avoid a civil penalty for illegal working is to ensure strict compliance with the [right to work check requirements](#) set out by the Home Office. A properly conducted right to work check will provide a statutory excuse, meaning that even if it is later discovered that a worker did not have the right to work, the employer will not be held liable.

1. Conducting Right to Work Checks

Employers must carry out right to work checks before employment begins. The check can be conducted using one of the following three methods:

- Manual check (checking and copying original documents);
- Online check (using the Home Office's online system for eligible migrants);
- Identity Service Provider check (for British and Irish citizens using digital identity verification).

To be compliant, a manual check must include:

- Obtaining the original documents from the Home Office's list of acceptable documents;
- Checking the documents in the presence of the holder to ensure they are genuine and belong to the person presenting them;
- Making a clear copy and retaining it securely with a record of the date the check was carried out.

An online check requires the worker to generate a share code via the Home Office website, which the employer then uses to view their immigration status. The result must be retained as evidence of the check.

2. Retaining Records

Employers must keep copies of right to work check records for the duration of employment and for at least two years after it ends. Records should be stored securely in a format that is readily accessible [in the event of a compliance visit](#).

3. Ongoing Monitoring

For employees with time-limited permission, employers must conduct follow-up checks shortly before the expiry of the individual's permission to work, track visa expiry dates and set internal reminders and take appropriate action if the individual is unable to demonstrate continuing right to work.

Failure to conduct follow-up checks where required will invalidate any previously established statutory excuse.

4. Training and Internal Policies

Employers should ensure that all staff responsible for recruitment and HR processes receive training on right to work requirements. It is advisable to implement standardised policies and procedures, regularly audit compliance and keep up to date with changes to immigration law and Home Office guidance.

5. Avoiding Knowing Employment

Even if a statutory excuse is established, an employer will not be protected where they knowingly employ a person who does not have the right to work, or where they have reasonable cause to believe this is the case. In such instances, civil penalties may be accompanied by criminal prosecution.

6. Refer to the Employer's Guide

The Home Office publishes detailed guidance entitled '[Employer's Guide to Right to Work Checks](#)', which provides authoritative information on how to comply with legal requirements. Employers should regularly consult this guide to ensure their processes remain aligned with current standards.

By implementing robust right to work checking procedures, maintaining accurate records, and investing in staff training, employers can significantly reduce the risk of receiving a civil penalty. [Proactive compliance](#) is not only a legal obligation but also an essential element of good corporate governance.

11. Civil Penalty FAQs for UK Employers

What is a civil penalty for illegal working in the UK?



How much is the civil penalty for employing someone illegally?



Can I reduce the civil penalty amount?



What is a statutory excuse?



What should I do if I receive a Civil Penalty Notice?



How do I object to a civil penalty?



Can I appeal a civil penalty decision?



Will a civil penalty affect my sponsor licence?



Are civil penalties made public?



How can I avoid a civil penalty for illegal working?



12. How Our Immigration Barristers Can Help

Navigating the civil penalty regime for illegal working can be legally complex, procedurally demanding, and commercially disruptive. At Richmond Chambers, our specialist immigration barristers provide expert advice and robust representation to help employers manage, respond to, and avoid civil penalties under UK immigration law.

Advice on Civil Penalty Notices

If you have received a Civil Penalty Referral Notice, Information Request, or Civil Penalty Notice, we can:

- Assess your potential liability and advise on available defences;
- Assist in preparing a comprehensive Information Request Response to establish a statutory excuse or highlight mitigating factors;
- Draft and submit detailed objections, including evidence and legal representations;
- Represent you in an appeal before the County Court, if necessary.

Our approach is strategic, thorough, and focused on minimising liability while safeguarding your business and professional reputation.

Right to Work Compliance Support

We also work with employers on a proactive basis to develop and maintain immigration compliance. Our services include:



- Advising on how to conduct and document right to work checks properly;
- Reviewing or drafting your right to work policies and internal procedures;
- Delivering training to HR staff and line managers;
- Conducting internal audits to identify and correct compliance gaps before a Home Office visit.

Sponsor Licence Implications

If your business holds or intends to [apply for a Sponsor Licence](#), our barristers can help mitigate the impact of any past civil penalty and ensure future compliance.

We advise on:

- [Sponsor Licence revocation](#) risk following a civil penalty;
- Strategies for reinstating or reapplying after a cooling-off period;
- Ensuring that your HR systems meet the Home Office's compliance expectations.

13. Contact Richmond Chambers Immigration Barristers

At Richmond Chambers, we pride ourselves on being approachable, responsive, and proactive in understanding and meeting our clients' needs. We are a highly driven team, committed to delivering clear and reliable immigration advice as part of a professional and friendly service.

To speak with one of our immigration barristers about a potential civil penalty, right to work checks or sponsor licence application, please call us on +44 (0)20 3617 9173, email us at info@richmondchambers.com or complete our online enquiry form below.

WE CAN ALSO ASSIST WITH

[Responding to a Civil Penalty Referral Notice](#)



[Challenging a Civil Penalty Notice](#)



[Civil Penalty Appeals in the County Court](#)



[Paying a Civil Penalty by Instalments](#)



[Avoiding Civil Penalties: Right to Work Compliance Reviews](#)[Sponsor Licence Risk Mitigation Following a Civil Penalty](#)[Training on Right to Work Checks](#)[Reputation Management and Communications](#)

WHAT CAN WE **HELP YOU WITH?**

To discuss a Civil Penalty Referral Notice or a Civil Penalty Notice with one of our immigration barristers, contact our business immigration team on 0203 617 9173 or complete our enquiry form below.

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By Isabella Reynard – Immigration Barrister
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